



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND FAR EAST
PSC 473 BOX 13
FPO AP 96349

ANNEX 1- JUSTIFICATION AND APPROVAL

No. 25-JA-FECON-0007

JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

Naval Facilities Engineering Systems Command, Far East (NAVFAC), Facilities Engineering and Acquisition Division (FEAD) Yokosuka, Japan.

2. Description of the Action Being Approved.

This justification and approval (J&A) seeks approval to award a contract to MITOMO CO LTD (MITOMO) on a sole source basis for temporary backup power services and re-route of temporary feeders in support of the Commander Fleet Activities Yokosuka (CFAY), Japan.

3. Description of Supplies/Services.

Provide all labor, supervision, management, tools, materials, equipment, facilities, transportation, and incidental services to provide backup power support at CFAY, including routine maintenance, preventative maintenance inspections, refuel as needed, and 24-hour service/trouble call response to avoid any interruptions of power.

In addition, contractor shall provide new electrical cable, cable racks, duct bank, manholes, excavation, conduit, repaving, and all necessary material and equipment downstream of B1, B2, B3, B4, B5, and B6 main high voltage electrical feeds to return a fully functional system.

The period of performance for this contract action is 12-months.

The estimated value is \$4M. Fiscal Year 25 Operations and Maintenance, Navy appropriations will be utilized.

Period of Performance	Estimated Dollar Value				Fund Source
	Recurring Services*	Non-Recurring Services**	Options	Total	
12 months	\$600,000	\$1,400,000	\$2,000,000	\$4,000,000	FY25 O&M Navy

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(2) Unusual and compelling urgency.

5. Rationale Justifying Use of Cited Statutory Authority.

CFAY experienced intermittent, extended power failures on 17, 19, 23 through 25 February 2025. The impacts included outages to NAVFAC Far East Headquarters, Yokosuka Middle School, Navy Lodge towers, and military family housing, which affected 512 Navy families at its peak.

Issuing a sole source contract to MITOMO is deemed to be in the best interest of the Government primarily due to their ability to meet the Government's timeline to provide a solution to temporarily arrest this urgent situation. An immediate response is of utmost importance as the power outages have affected 14 facilities and more than 512 families. Many of these families were displaced from their homes and forced to find alternative accommodations while the power was being restored. As stated under Paragraph 6 below, the Government was unable to identify other sources that would be capable of immediately performing the work and considering a standard procurement lead-time of 18 months to pursue full and open competition, limiting competition to MITOMO would be in the best interest for the Government to respond quickly and minimize the risk for future outages to occur while a permanent solution is developed.

In addition to the above, MITOMO has extensive experience with CFAY's power grid and is intimately familiar with electrical requirements on the installation. By leveraging MITOMO's capabilities, existing presence, familiarity with existing power requirements and proven track record, the US Navy will be able to mitigate risk, enhance operational resilience and ensure mission success to support warfighter capabilities in the Indo-Pacific region.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

A synopsis for this planned action was not published to the SAM.GOV website due to applicable exception under FAR Part 5.202(a)(2). However, in accordance with FAR 6.305, the approved J&A will be posted on SAM.GOV within 30 days after award of the contract.

No additional market research was conducted because it is not practical for the reasons discussed in paragraph 5 above, for any company other than MITOMO to provide the required services.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

This is a one-time requirement. NAVFAC Far East FEAD Yokosuka will continue to promote competition to the maximum extent to obtain services through use of the competitive procedures.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION:

I certify that the facts and representations under my cognizance, which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical & Requirements Cognizance:

I certify that the facts and representations under my cognizance, which are included in this Justification and its supporting acquisition documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

	Tsukasa T. Santos		03/25/2025
Signature	Name (Printed)	Phone No. (DSN)	Date

LEGAL SUFFICIENCY REVIEW:

I have determined this Justification is legally sufficient.

	David Kelly		3/26/2025
Signature	Name (Printed)	Phone No. (DSN)	Date

CONTRACTING OFFICER CERTIFICATION:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

	Joshua Kaimikaua		3/26/2025
Signature	Name (Printed)	Phone No. (DSN)	Date

ECH IV CHIEF OF THE CONTRACTING OFFICE CERTIFICATION

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

JEE-EUN BLANTON

Phone No.

Date

ECH IV COMMANDING OFFICER APPROVAL:

Upon the basis of the above justification, I hereby approve the proposed procurement described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. § 3204(a)(2), Unusual and Compelling Urgency.



M. C. TOLHURST
Captain, CEC, U. S. Navy
Commanding Officer
Naval Facilities Engineering Systems Command Far East

27 MAR 25
Date